

Indresh Singh @ Indreshwar Patel v. State of U.P. and 4 Others

High Court of Judicature at Allahabad · Division Bench (Court No. 21) · 15 February 2023 · Writ C No. 5111 of 2023 ·
Petition disposed after the department withdrew the theft-dues recovery citation.

HEADNOTE

Writ challenging a recovery citation for electricity-theft dues disposed of after counsel for the Electricity Department stated that the citation had been withdrawn and that a fresh order would be passed. Respondents left at liberty to pass that order after following the procedure prescribed under the Electricity Supply Code, 2005. No clause construed.

FACTUAL SUMMARY

Indresh Singh alias Indreshwar Patel challenged before the Allahabad High Court a recovery citation dated 3 September 2022 issued by respondent no. 3. The citation sought recovery of electricity dues in a case of alleged theft of electricity. The State of Uttar Pradesh and four others were respondents. At the hearing, counsel for the Electricity Department stated that the impugned recovery had been withdrawn and that a fresh order would be passed in due course.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

disposal after withdrawal of theft recovery citation

HOLDING

On the Electricity Department's statement that the recovery citation dated 3 September 2022 for alleged theft dues stood withdrawn and that a fresh order would be passed, the writ was disposed of with liberty to the respondents to pass the fresh order after following the procedure prescribed under the Electricity Supply Code, 2005. The Court did not construe any clause. ¶ 1

PRINCIPLE TAGS

procedural-listing-no-construction The writ was disposed of because the Electricity Department withdrew the recovery citation and undertook to pass a fresh order; the Court stated no construction of any Supply Code clause. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LIABILITY AND QUANTUM OF THE ALLEGED ELECTRICITY-THEFT DUES

The impugned recovery citation was withdrawn by the department. The Court did not examine the assessment and left the respondents free to pass a fresh order under the Supply Code. ¶ 1